Austin Public Health
Environmental Health Services

P.O. BOX 142529 Austin, TX 78714
Phone (512) 978-0300 Customer Portal, online submissions:
https://myhealthdepartment.com/aph
Walk-in Location: 1520 Rutherford LN, NE corner of Rutherford LN @ Cameron RD, Bldg 1
East Entrance (Not a Mailing Address)

FOR OFFICE USE

Received: _____ **Paid On:** _____ **Check #:** _____ **Amount:** _____ **Receipt** _____

Initial: _____ **Permit:**_____ **Juris:** **COA / TC / ILA**

Food Enterprise: Operational Permit Application

Establishment Information

Note: Incomplete applications will not be processed and will be returned

Establishment Name: _____ **Employees:** _____
Total (Fulltime/Part-time/Self)

Physical Address: _____
Street (include Suite/Unit) City State Zip Code

Mailing Address: _____
Use the mailing address space to specify the address where you would like to receive Permits and Renewal Notifications.

Hours: _____ **Water Supply:** ☐ Public ☐ Private **Sewage:** ☐ Public ☐ Private
Days and Hours of Operation Potable Water Provider ☐ Well ☐ MUD Waste Water Disposal ☐ Well ☐ MUD

Establishment Type: **Retail Food:** ☐ Bakery ☐ Bar ☐ Bed & Breakfast ☐ Boarding Home ☐ Child Care ☐ Church
Refer to page 2 for definitions ☐ Concession Stand ☐ Convenience Store ☐ Hospital ☐ Nursing Home ☐ Restaurant
☐ School ☐ State Facility ☐ Supermarket ☐ Other _____
Food Product: ☐ Manufacturing ☐ Food Warehouse ☐ Other _____

Gross Annual Volume of Food Sales: $0 - $49,000 ☐ $50,000 - $149,000 ☐ $150,000 or more ☐
Fees: **$309** **$618** **$927**
City of Austin Jurisdiction Only

Ownership Information

Note: All fields required. Print names as they appear on the Government Issued Photo ID(s)

Business Entity/Owner: _____

Org Type: ☐ Corporation ☐ LLC ☐ Partnership ☐ Proprietorship Note: Proof of ownership documentation required (see page 2).

(Owner) Phone: _____ **(Owner) Email Address:** _____
(###) ### - ####

Responsible Party: _____ **Date of Birth:** _____
Last Name First Name Middle Name MM/DD/YYYY

Mailing Address: _____
Street City State Zip Code

Driver's License: _____ /_____ **Phone:** _____ **Email Address:** _____
ID# State (###) ### - ####

MAILED IN APPLICATIONS WILL NOT BE ACCEPTED
Payment Forms Accepted:
City of Austin and ILA Jurisdiction: Cash, Check, Money Order, Visa, MasterCard, Discover, AMEX
Unincorporated Travis County Jurisdiction: Cash, Check, Money Order
Make checks and money orders payable to: Austin Public Health
Fee Schedule available at www.austintexas.gov/ehsd
The Permit Application fee may be refundable upon request within 180 days from date of payment.

_____ _____ _____
Applicant's Signature Print Name Date

I acknowledge that all information supplied above is true and correct to the best of my knowledge and belief. I further acknowledge that the permit, for which I am applying, is subject to all provisions of the orders and ordinances of Austin & Travis County, and all of the provisions of the codes, statutes and rules adopted under the codes and statutes of the State of Texas governing food establishments.

Food Enterprise Application: Supplemental Information

Applying for a Permit

Applicants must submit all necessary paperwork and payments to Austin Public Health and receive approval before obtaining a permit. Applications can be submitted at the in-person location (1520 Rutherford LN) or via Customer Portal: https://myhealthdepartment.com/aph Please note, for City of Austin and ILA jurisdictions, you will receive an email with your invoice, total amount due, and instructions on how to make payment.

The fees will be determined based on Inspection Frequency Analysis and the customer will be notified of fee amount due. Due to the fee assessment process, Travis County applicants that choose to email their applications will see a delay in the process. Travis County applicants will be instructed to submit payment via in-person or mail. Approval is based on compliance with State & Local Health Ordinances; application does not guarantee a permit will be granted.

Applications must include:
1) A completed "Food Enterprise: Operational Permit Application" form
2) Ownership Documentation (see Ownership Documentation section)
3) A completed "Inspection Frequency Analysis" form

Renewing a Permit

Permits expire one (1) year from the date issued. Prior to expiration, the department will mail a renewal notice to the mailing address listed on the application. The renewal form must be completed and returned to the department along with a payment for the permit renewal fee. Establishments that do not receive a notice are still responsible for completing the renewal application and submitting a renewal payment.

Terminology Definitions

Business Entity/ Owner:	Any entity or individual(s) that maintains full or partial ownership control over a food enterprise. See ownership documentation requirements for further clarification.
Responsible Party:	Any individual(s) who ensures the food establishment operations/practices are in accordance with all food codes and ordinances. This individual(s) also assumes legal responsibility in all cases of non-compliance.
Food Establishment:	The physical location in which food is prepared or served.
Retail Food:	An operation that offers food and/or beverages directly to a consumer for either on-premises or off-premises consumption. Establishment examples include, but are not limited to, restaurants, delis, bars, convenience stores and grocery stores.
Food Product:	An operation that manufactures, packages, labels or stores food and/or beverages and does not vend directly to a consumer. These establishments solely wholesale their product to a third-party vendor for sale to the end-user.

Ownership Documentation

Proprietorship: A date-stamped copy of the **Certificate of Assumed Name**

General Partnership: A copy of the fully executed **Partnership Agreement t**o include the name of each member of the partnership and percentage ownership

Limited Partnership (LP): A date-stamped copy of the **Certificate of Limited Partnership t**o include the name of each member of the partnership and percentage ownership

Limited Liability Company (LLC): Articles of Organization (Formation documents) to include the name and percentage ownership for each member and the name for the registered agent. Date stamped copy of the **Certificate of Filing** and **Formation** filed with the **Texas Secretary of State**

Corporation (Inc.): Articles of Incorporation (Formation documents) to include the name of each officer and the name for the director and the registered agent of the corporation or named person of responsibility. Date stamped copy of the **Certificate of Filing** and **Formation** filed with the **Texas Secretary of State.**

Plan Review and Approval

Establishments conducting new/remodel construction must undergo a building plan review to assure specifications of the food preparation, storage, and sales areas of the proposed or existing food outlet meet applicable regulations. Plans must indicate the layout, equipment arrangement, mechanical plans, and construction materials of work areas and the type/model of proposed fixed equipment. See Plan Review application for further details regarding plans.

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Food Enterprise Application: Inspection Frequency Analysis

1. Is food served primarily to *highly susceptible populations*?

   ☐ Yes ☐ No

2. Are any specialized processing methods utilized, such as using additives to render food non-TCS, *non-continuous cooking*, reduced oxygen packaging, sous vide, cook-chill?

   ☐ Yes ☐ No

3. Are raw or undercooked meats (cook to order) or unpasteurized juices offered?

   ☐ Yes ☐ No

4. How would you describe your food service facility process? (check one)

   ☐ Process 1 - No cooking of raw or partially cooked food, only receiving, prepping, cold holding and service.
   - Examples include: Pre-packaged food items (packaged meats, milk, bacon, cookies, candy, etc.).
   - Storing, stocking or warehousing of receivables only.
   - Limited food handling or no food handling.
   - Beverage service only.
   - Hazardous foods always kept at 41°F or lower prior to service (sushi, cold-cut sandwiches, salads, scooped ice cream, processed fruit, etc.).

   ☐ Process 2 - Same-day-service involving receiving, prepping, cooking (one-time), hot or cold holding and service.
   - Examples include: heated/reheated self-serve commercially processed foods (hot dogs, pizza, etc.).

   ☐ Process 3 - Full-service with cooking, cooling, hot/cold holding (> 24 hours), reheating and service.
   - Examples include: foods requiring cooking from raw (soups, meats, fish, seafood, poultry, etc.).

5. Average number of customers per day? (Assume a "0" value for retail food stores with no customers served or *wholesale/manufacturer* establishments.)

   ☐ 0 customers ☐ 1-150 customers ☐ 151-300 customers ☐ >300 customers

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Definitions

Highly susceptible populations – Persons who are more likely than other people in the general population to experience foodborne disease because they are immunocompromised, preschool aged children, or older adults obtaining food at a healthcare or assisted living facility.

Food Manufacturer – To produce a food product or a component of a food and either package it for customer self-service or sell to another business that will serve to customers or resale.

Non-continuous cooking – The cooking of food in a food establishment using a process in which the initial heating of the food is intentionally halted so that it may be cooled and held for complete cooking at a later time prior to sale/service.

Specialized Processing Method – A method of preparing certain foods that includes but is not limited to smoking food as a method of food preservation, curing food, using food additives to preserve and/or render food so that it is not a time/temperature control food for safety such as sushi rice, and packaging food using reduced oxygen packaging.

Wholesale – To sell something to another individual, company, store (i.e. grocery stores, convenience stores, restaurants, etc.) for the purpose of resale.

For Office Use

Score: _____ Initials: _____